



A COMMUNITY OF CHOICE

Planning and Development Department
2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council

From: Jeanie Shrednik, PLA, Parks and Greenway Planner

Subject: Cooperative Agreement between the City of Cheyenne and WDEQ for a FY2024 Clean Water Act, Section 319, Non-Point Source Implementation Grant to assist in construction of the Kiwanis Park Trail and Constructed Wetlands Project. (FY2024 CWA Section 319), Amount to the City \$ 112,904.00.

Date: February 18, 2025

Background:

This project will include construction of water quality wetlands, gravel trails and installation of educational signage within the City owned Kiwanis Community Park site. The intent is to provide a water quality wetlands feature along a portion of Dry Creek. Dry Creek is a tributary of the Crow Creek Water Shed. The project will add to existing wetlands and open water on the site, provide gravel trails for the public to view nature and wildlife and educate the public on the many functions of wetlands and their effect on both water quality and wildlife habitat.

The project has been supported by and will be matched with funding from the following;

Kiwanis Club of Cheyenne \$80,000.00
Cheyenne High Plains Audubon Society \$2,500.00
Cheyenne Greenway Foundation \$3,000.00
Women's Civic League of Cheyenne \$800.00
Laramie County Conservation District \$1,000.00
City of Cheyenne 6th Penny for Kiwanis Park Purchase and Improvements \$185,000.00

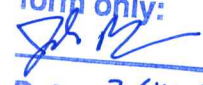
The current funding in the Kiwanis Park 6th Penny account is approximately \$ 500,000.00

Enclosures:

Cooperative Agreement

Project Concept Rendering

**COOPERATIVE AGREEMENT BETWEEN
WYOMING DEPARTMENT OF ENVIRONMENTAL QUALITY
AND
CITY OF CHEYENNE**

Approved as to
form only:

Date: 2/14/25

1. **Parties.** The parties to this Cooperative Agreement (Agreement) are the Wyoming Department of Environmental Quality (Agency), whose address is: 200 West 17th Street, Suite 400, Cheyenne, Wyoming 82002, and the City of Cheyenne (Recipient), whose address is: 2101 O'Neil Avenue, Cheyenne, WY 82001.
2. **Purpose of Agreement.** The purpose of this Agreement is to implement the City of Cheyenne's FY2024 CWA Section 319 project titled "The Kiwanis Park Trail and Constructed Wetlands Project." The City of Cheyenne will install treatment wetlands, gravel trails and educational signage in its City owned Kiwanis Community Park site. The intent is to provide a water quality wetland feature along a portion of Dry Creek, a tributary to Crow Creek which is impaired due to sediment and E. coli.
3. **Term of Agreement.** This Agreement is effective when all parties have executed it (Effective Date). The term of the Agreement is from the Effective Date through February 28, 2029. All services shall be completed during this term.
4. **Reimbursement.** The Agency agrees to reimburse the Recipient for the services described in Attachment A, Scope of Work, which is attached to and incorporated into this Agreement by this reference.
 - A. The Total Project Cost under this Agreement shall not exceed three hundred ninety-nine thousand, two hundred eighty dollars (\$399,280.00) unless modified by written amendment to this Agreement pursuant to Section 8(A), below.
 - B. The Agency shall reimburse the Recipient a total reimbursement amount not to exceed one hundred twelve thousand, nine hundred four dollars (\$112,904.00) or twenty-eight percent (28%) of the Total Project Cost, whichever is less.
 - C. The budget for this project is provided in Attachment B, Project Budget, which is attached to and incorporated into this Agreement by this reference. Reimbursement shall be made within forty-five (45) days after Agency's receipt of a signed reimbursement request and approval of the Agency Project Officer, pursuant to Wyo. Stat. § 16-6-602. No reimbursement shall be made for costs incurred before the Effective Date of this Agreement. Should the Recipient fail to perform in a manner consistent with the terms and conditions set forth in this Agreement, reimbursement under this Agreement may be withheld until such time as the Recipient performs its duties and responsibilities to the satisfaction of Agency.
 - D. Costs for travel and expenses incidental to travel shall be reimbursed or used as match at rates not to exceed Recipient's usual and customary rates for Recipient's employees and agents, not to exceed the actual cost to Recipient. Recipient is

expected to procure the most cost efficient travel arrangements. Reimbursement for travel and expenses is included in the total reimbursement amount set forth in Section 4(B), above.

- E. Recipient shall submit reimbursement requests no less than quarterly, but not more than monthly, to: deq.ap@wyo.gov. Recipient shall submit each reimbursement request within thirty (30) days of the close of each quarter. Recipient agrees to submit a final reimbursement request within thirty (30) days of the expiration of this Agreement.
- F. Each request for reimbursement shall include:
 - (i) A project progress report;
 - (ii) A completed Reimbursement Request Form, summarizing expenditures by task and object class, provided in Attachment C, Reimbursement Tables, which is attached to and incorporated into this Agreement by this reference; and
 - (iii) Documentation supporting Recipient expenditures.
- G. Each reimbursement shall be conditioned upon the faithful performance of the project reporting described in Section 7(T). of this Agreement and in Attachment A.
- H. The Agency shall not be liable to the Recipient for any work performed by the Recipient before the Effective Date of this Agreement, and Recipient hereby expressly waives any and all claims for work performed in expectation of this Agreement before its execution. Further, the Agency shall not be liable to the Recipient for any work performed by the Recipient related to development of the Scope of Work for this Agreement or any subsequent agreement.

5. Responsibilities of Recipient. The Recipient agrees to:

- A. Perform all of the services and tasks detailed in the Scope of Work in Attachment A.
- B. Provide all means to perform the services required by the Agency pursuant to this Agreement including, but not limited to, transportation, clothing and supplies. The Agency shall not be obligated to provide office space or supplies, nor any office or field support staff.
- C. Constantly monitor its performance and the performance of its subcontractors and sub-recipients under this Agreement to assure that time schedules are being met,

projected work units by time period are being accomplished, and other performance goals are being achieved.

- D. Monitor each program, function or activity within the Scope of Work.
- E. Disclose and send to the Agency all favorable and unfavorable conditions related to the work performance as soon as the conditions become known. The Recipient shall transmit such disclosures by mail, return receipt requested. The disclosure shall be accompanied by a statement of the action taken or contemplated and any assistance needed from the Agency to resolve the situation.
- F. Allow Agency representatives to make site visits to review program accomplishments and management control systems including Agency approved Quality Assurance/Quality Control plans if this Agreement involves Recipient sampling, analysis and/or data collection and provide such technical assistance as may be required by the Recipient.
- G. Provide the Agency with a completed Federal Funding Accountability and Transparency Act Recipient Disclosures Form Attachment D, which is attached to and incorporated into this Agreement by this reference.
- H. Obtain the consent of agricultural producers or the owners of agricultural land to the extent required to ensure compliance with Wyo. Stat. § 16-4-203(d)(xiv). Recipient acknowledges that federal funding for this project requires the Agency to disclose all collected data and project information.

6. **Responsibilities of Agency.** The Agency agrees to:

- A. Reimburse Recipient in accordance with Section 4 above.

7. **Special Provisions.**

- A. **Administration of Federal Funds.** Recipient agrees its use of the funds awarded herein is subject to the Uniform Administrative Requirements of 2 C.F.R. Part 200, *et seq.*; 40 C.F.R. Chapters I, IV and VII; any additional requirements set forth by the federal funding agency; all applicable regulations published in the Code of Federal Regulations; and other program guidance as provided to it by Agency. The E.P.A. General Terms and Conditions Effective October 1, 2022 may be found at:

https://www.epa.gov/system/files/documents/2022-09/fy_2022_epa_general_terms_and_conditions_effective_october_1_2022_or_later.pdf

The E.P.A Subaward Policy for E.P.A. Assistance Agreement Recipients may be found at:

<https://www.epa.gov/grants/grants-policy-issuance-gpi-16-01-epa-subaward-policy-epa-assistance-agreement-recipients>

- B. Assumption of Risk.** The Recipient shall assume the risk of any loss of state or federal funding, either administrative or program dollars, due to the Recipient's failure to comply with state or federal requirements. The Agency shall notify the Recipient of any state or federal determination of noncompliance.
- C. Civil Rights Obligations.** The Recipient agrees to comply with all applicable EPA civil rights regulations, including:
- (i) For Title IX obligations, 40 C.F.R. Part 5; and
 - (ii) For Title VI, Section 504, Age Discrimination Act, and Section 13 obligations, 40 C.F.R. Part 7.

These regulations establish specific requirements including maintaining compliance information, establishing grievance procedures, designating a Civil Rights Coordinator, and providing notices of non-discrimination.

In addition, as a recipient of E.P.A. financial assistance, you are required by Title VI of the Civil Rights Act to provide meaningful access to Limited English Proficient Persons. In implementing that requirement, the recipient agrees to use as a guide the Office of Civil Rights (O.C.R.) document entitled "Guidance to Environmental Protection Agency Financial Assistance Recipients Regarding Title VI Prohibition Against National Origin Discrimination Affecting Limited English Proficient Persons." The guidance can be found at:

<https://www.gpo.gov/fdsys/pkg/FR-2004-06-25/pdf/04-14464.pdf>

In accepting this Agreement, the Recipient acknowledges it has an affirmative obligation to implement effective Title VI compliance programs and ensure that its actions do not involve discriminatory treatment and do not have discriminatory effects even when facially neutral. The Recipient must be prepared to demonstrate to E.P.A. that such compliance programs exist and are being implemented or to otherwise demonstrate how it is meeting its Title VI obligations.

- D. Contract Work Hours and Safety Standards Act.** Recipient agrees to comply with Sections 103 and 107 of the Contract Work Hours and Safety Standards Act (40 U.S.C. 327-330) as supplemented by Department of Labor regulations (29 C.F.R. part 5).
- E. Copyright License and Patent Rights.** Recipient acknowledges that federal grantor, the State of Wyoming, and Agency reserve a royalty-free, nonexclusive,

unlimited, and irrevocable license to reproduce, publish, or otherwise use, and to authorize others to use, for federal and state government purposes: (1) the copyright in any work developed under this Agreement; and (2) any rights of copyright to which Recipient purchases ownership using funds awarded under this Agreement. Recipient must consult with Agency regarding any patent rights that arise from, or are purchased with, funds awarded under this Agreement.

F. Environmental Policy Acts. Recipient agrees all activities under this Agreement will comply with the Clean Air Act, the Clean Water Act, the National Environmental Policy Act, and other related provisions of federal environmental protection laws, rules or regulations.

G. Equal Employment Opportunity. Recipient agrees to comply with Executive Order 11246 of September 24, 1965, entitled "Equal Employment Opportunity," as amended by Executive Order 11375 of October 13, 1967, and as supplemented in Department of Labor regulations (41 C.F.R. Chapter 60).

H. Funding.

- (i)** The Agency funding includes federal and non-federal state funding in an amount not to exceed one hundred twelve thousand, nine hundred four dollars (\$112,904.00) or one hundred percent (100%) of the Agency costs and sixty percent (28%) of the Total Project Cost under Catalog of Federal Domestic Assistance Number 66.460.
- (ii)** The balance of the Total Project Cost will be provided by the Recipient.
 - (a)** Any costs accrued by the Recipient sixty (60) days before the Effective Date of this Agreement may be used as match if those costs were incurred in support of the Scope of Work of this Agreement.
 - (b)** Match costs will not be reimbursed under this Agreement and this clause is not intended to create any obligation for reimbursement or expectation of final approval of this Agreement.
- (iii)** Funding for this project shall be provided by the State of Wyoming, the United States Government, or both. However, neither the United States nor any of its departments, agencies, or employees is party to this Agreement.
- (iv)** Recipient shall continuously monitor the activities of its employees, agents, and representatives to assure the Agreement is being administered in accordance with the provisions of this Agreement and all applicable state and federal laws, rules and regulations.

- I. Human Trafficking.** As required by 22 U.S.C. § 7104(g) and 2 C.F.R. Part 175, this Agreement may be terminated without penalty if a private entity that receives funds under this Agreement:
- (i) Engages in severe forms of trafficking in persons during the period of time that the award is in effect;
 - (ii) Procures a commercial sex act during the period of time that the award is in effect; or
 - (iii) Uses forced labor in the performance of the award or subawards under the award.
- J. Kickbacks.** Recipient certifies and warrants that no gratuities, kickbacks, or contingency fees were paid in connection with this Agreement, nor were any fees, commissions, gifts, or other considerations made contingent upon the award of this Agreement. If Recipient breaches or violates this warranty, Agency may, at its discretion, terminate this Agreement without liability to Agency, or deduct from the agreed upon price or consideration, or otherwise recover, the full amount of any commission, percentage, brokerage, or contingency fee.
- K. Limitations on Lobbying Activities.** By signing this Agreement, Recipient certifies and agrees that, in accordance with P.L. 101-121, reimbursements made from a federal grant shall not be utilized by Recipient or its subrecipients in connection with lobbying member(s) of Congress, or any federal agency in connection with the award of a federal grant, contract, cooperative agreement, or loan.
- L. MBE/WBE Utilization/Reporting.** Recipient agrees that qualified minority business enterprises shall have the maximum practicable opportunity to participate in the performance of this Federal grant-assisted Agreement. The Recipient shall submit, by October 15 of each year and with Recipients' final reimbursement request, the N. P. S. Program Form "319 Project MBE/WBE Reporting Form" to the Agency Project Officer. Recipient agrees to engage in the following affirmative action steps for all subcontracting associated with this Agreement:
- (i) The inclusion of qualified minority businesses on solicitation list;
 - (ii) The assurance that minority businesses are solicited whenever they are identified as potential sources;
 - (iii) The division of total requirements, when economically feasible, into small tasks or quantities to permit maximum participation of minority businesses;
 - (iv) The establishment of reasonable delivery schedules when feasible, so as to encourage participation by minority businesses;

(v) The utilization of the services and assistance of the Small Business Administration and the Minority Business Development Agency of the U.S. Department of Commerce;

(vi) The requirement that each party to a subcontract, subagreement or contract award take the affirmative steps outlined in this Section of this Agreement.

M. Nondiscrimination. The Recipient shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans with Disabilities Act (ADA), 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto and shall not discriminate against any individual on the grounds of age, sex, color, race, religion, national origin, or disability in connection with the performance under this Agreement.

Federal law requires the Contractor to include all relevant special provisions of this Contract in every subcontract awarded over ten thousand dollars (\$10,000.00) so that such provisions are binding on each subcontractor.

N. No Finder's Fees. No finder's fee, employment agency fee, or other such fee related to the procurement of this Agreement, shall be paid by either party.

O. Publicity. Any publicity given to the projects, programs, or services provided herein, including, but not limited to, notices, information, pamphlets, press releases, research, reports, signs, and similar public notices in whatever form prepared by or for Recipient and related to the services and work to be performed under this Agreement, shall identify the Agency as the sponsoring agency and shall not be released without prior written approval of Agency.

The Recipient also agrees to comply with "[U.S. E.P.A.'s Clean Water Act Section 319 Non-Point Source Assistance Agreements Public Awareness Terms and Conditions](#)."

P. Non-Supplanting Certification. Recipient hereby affirms that federal grant funds shall be used to supplement existing funds, and shall not replace (supplant) funds that have been appropriated for the same purpose. Recipient should be able to document that any reduction in non-federal resources occurred for reasons other than the receipt or expected receipt of federal funds under this Agreement.

Q. Operation and Maintenance. The Recipient will assure the continued proper operation and maintenance of all management practices that have been funded under this Agreement, unless a particular practice did not function as planned. Such practices shall be operated and maintained for an appropriate number of years in accordance with commonly accepted standards. The Recipient shall include a provision in every applicable sub-agreement (sub-grant or contract) awarded under

this Agreement requiring that the management practices for the project be properly operated and maintained.

- R. **Program Income.** Any income attributable to the grant funds distributed under this Agreement must be used to increase the scope of the program or returned to Agency.
- S. **Recipient Reporting Requirements.** Recipient agrees to submit annual progress reports by December 15 of each year during the duration of this Agreement. Recipient agrees to submit the final reimbursement request within thirty (30) days of the expiration of this Agreement and a final project report within thirty (30) days of the date the final reimbursement request is submitted. The final project report will include all data collected during the period of this Agreement.
- T. **Reimbursement in Advance of Expenditure.** Recipient agrees that it will not request reimbursement in advance of the expenditure(s) on which the request is based. Further, any interest earned by Recipient as a result of receiving a reimbursement in advance of expenditure shall become property of the Agency.
- U. **Records Retention.** Recipient agrees to retain all required records for three (3) years after receiving and/or making final payments and all other pending matters are closed.
- V. **Suspension and Debarment.** By signing this Agreement, the Recipient certifies that neither it nor its principals/agents are presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from participation in this transaction or from receiving federal financial or nonfinancial assistance, nor are any of the participants involved in the execution of this Agreement suspended, debarred, or voluntarily excluded by any federal department or agency in accordance with Executive Order 12549 (Debarment and Suspension), or 2 CFR Part 180, or are on the debarred, or otherwise ineligible, vendors lists maintained by the federal government. Further, the Recipient agrees to notify the Agency by certified mail should it or any of its principals/agents become ineligible for payment, debarred, suspended, or voluntarily excluded from receiving federal funds during the term of this Agreement.
- W. **Build America, Buy America Act.** Recipient acknowledges that, in accordance with P.L. 117-58, none of the funds provided under this award may be used for a project for infrastructure unless all of the iron, steel, manufactured products, and construction materials used in the project are produced in the United States.

"Infrastructure" includes at a minimum, the structures, facilities, and equipment for, in the United States, roads, highways, and bridges; public transportation; dams, ports, harbors, and other maritime facilities; intercity passenger and freight railroads; freight and intermodal facilities; airports; water systems, including drinking water and wastewater systems; electrical transmission facilities and

systems; utilities; broadband infrastructure; and buildings and real property. Infrastructure includes facilities that generate, transport, and distribute energy.

The Recipient agrees to use as a guide the Office of Management and Budget (OMB) document entitled "Initial Implementation Guidance on Application of Buy America Preference in Federal Financial Assistance Programs for Infrastructure." The guidance can be found at:

<https://www.whitehouse.gov/wp-content/uploads/2022/04/M-22-11.pdf>

When necessary, Recipient may apply for, and the Agency may grant, a waiver from these requirements based on criteria outlined in the above referenced OMB guidance. If infrastructure is included in the project, the Recipient agrees to notify the Agency if a waiver is necessary to complete the project as outlined in the project Scope of Work.

8. General Provisions.

- A. Amendments.** Any changes, modifications, revisions, or amendments to this Agreement which are mutually agreed upon by the parties to this Agreement shall be incorporated by written instrument, executed by all parties to this Agreement.
- B. Applicable Law, Rules of Construction, and Venue.** The construction, interpretation, and enforcement of this Agreement shall be governed by the laws of the State of Wyoming, without regard to conflicts of law principles. The terms "hereof," "hereunder," "herein," and words of similar import, are intended to refer to this Agreement as a whole and not to any particular provision or part. The Courts of the State of Wyoming shall have jurisdiction over this Agreement and the parties. The venue shall be the First Judicial District, Laramie County, Wyoming.
- C. Assignment Prohibited and Agreement Shall Not be Used as Collateral.** Neither party shall assign or otherwise transfer any of the rights or delegate any of the duties set out in this Agreement without the prior written consent of the other party. The Recipient shall not use this Agreement, or any portion thereof, for collateral for any financial obligation without the prior written permission of the Agency.
- D. Audit and Access to Records.** The Agency and its representatives shall have access to any books, documents, papers, electronic data, and records of the Recipient which are pertinent to this Agreement. The Recipient shall immediately, upon receiving written instruction from the Agency, provide to any independent auditor or accountant all books, documents, papers, electronic data, and records of the Recipient which are pertinent to this Agreement. The Recipient shall cooperate fully with any such independent auditor or accountant during the entire course of any audit authorized by the Agency.

- E. Availability of Funds.** Each reimbursement obligation of the Agency is conditioned upon the availability of government funds which are appropriated or allocated for the payment of this obligation and which may be limited for any reason including, but not limited to, congressional, legislative, gubernatorial, or administrative action. If funds are not allocated and available for continued performance of the Agreement, the Agreement may be terminated by the Agency at the end of the period for which the funds are available. The Agency shall notify the Recipient at the earliest possible time of the services which will or may be affected by a shortage of funds. No penalty shall accrue to the Agency in the event this provision is exercised, and the Agency shall not be obligated or liable for any future reimbursements due or for any damages as a result of termination under this section.
- F. Award of Related Agreements.** The Agency may award supplemental or successor agreements for work related to this Agreement or may award agreements to other contractors for work related to this Agreement. The Recipient shall cooperate fully with other contractors and the Agency in all such cases.
- G. Certificate of Good Standing.** The Recipient shall provide to the Agency a Certificate of Good Standing from the Wyoming Secretary of State, or other proof that Recipient is authorized to conduct business in the State of Wyoming, if required, before performing work under this Agreement. Recipient shall ensure that annual filings and corporate taxes due and owing to the Secretary of State's office are up-to-date before signing this Agreement.
- H. Compliance with Laws.** The Recipient shall keep informed of and comply with all applicable federal, state, and local laws and regulations, and all federal grant requirements and executive orders in the performance of this Agreement.
- I. Entirety of Agreement.** This Agreement, consisting of fourteen (14) pages; Attachment A, Scope of Work, consisting of eleven (11) pages; Attachment B, Project Budget, consisting of seven (7) pages; Attachment C, Reimbursement Tables, consisting of seven (7) pages; and Attachment D, Subaward Data Form, consisting of two (2) pages, represent the entire and integrated Agreement between the parties and supersede all prior negotiations, representations, and agreements, whether written or oral. In the event of a conflict or inconsistency between the language of this Agreement and the language of any attachment or document incorporated by reference, the language of this Agreement shall control.
- J. Ethics.** Recipient shall keep informed of and comply with the Wyoming Ethics and Disclosure Act (Wyo. Stat. § 9-13-101, *et seq.*) and any and all ethical standards governing Recipient's profession.
- K. Extensions.** Nothing in this Agreement shall be interpreted or deemed to create an expectation that this Agreement will be extended beyond the term described herein. Any extension of this Agreement shall be initiated by the Agency and shall be accomplished through a written amendment between the parties entered into before

the expiration of the original Agreement or any valid amendment thereto, and shall be effective only after it is reduced to writing and executed by all parties to the Agreement.

- L. Force Majeure.** Neither party shall be liable for failure to perform under this Agreement if such failure to perform arises out of causes beyond the control and without the fault or negligence of the nonperforming party. Such causes may include, but are not limited to, acts of God or the public enemy, fires, floods, epidemics, quarantine restrictions, freight embargoes, and unusually severe weather. This provision shall become effective only if the party failing to perform immediately notifies the other party of the extent and nature of the problem, limits delay in performance to that required by the event, and takes all reasonable steps to minimize delays.
- M. Indemnification.** Each party to this Agreement shall assume the risk of any liability arising from its own conduct. Neither party agrees to insure, defend, or indemnify the other.
- N. Independent Contractor.** The Recipient shall function as an independent contractor for the purposes of this Agreement and shall not be considered an employee of the State of Wyoming for any purpose. Consistent with the express terms of this Agreement, the Recipient shall be free from control or direction over the details of the performance of services under this Agreement. The Recipient shall assume sole responsibility for any debts or liabilities that may be incurred by the Recipient in fulfilling the terms of this Agreement and shall be solely responsible for the payment of all federal, state, and local taxes which may accrue because of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Recipient or its agents or employees to act as an agent or representative for or on behalf of the State of Wyoming or the Agency or to incur any obligation of any kind on behalf of the State of Wyoming or the Agency. The Recipient agrees that no health or hospitalization benefits, workers' compensation, unemployment insurance or similar benefits available to State of Wyoming employees will inure to the benefit of the Recipient or the Recipient's agents or employees as a result of this Agreement.
- O. Notices.** All notices arising out of, or from, the provisions of this Agreement shall be in writing either by regular mail, e-mail or delivery in person at the addresses provided under this Agreement. Notice provided by e-mail shall be delivered as follows:
- Agency: Ron Steg, ron.steg@wyo.gov
Recipient: Jean A Shrednik, jshrednik@cheyennecity.org
- P. Ownership and Return of Documents and Information.** Agency is the official custodian and owns all documents, data compilations, reports, computer programs, photographs, data, and other work provided to or produced by the Recipient in the performance of this Agreement. Upon termination of services, for any reason,

Recipient agrees to return all such original and derivative information and documents to the Agency in a useable format. In the case of electronic transmission, such transmission shall be secured. The return of information by any other means shall be by a parcel service that utilizes tracking numbers.

- Q. Patent or Copyright Protection.** The Recipient recognizes that certain proprietary matters or techniques may be subject to patent, trademark, copyright, license, or other similar restrictions, and warrants that no work performed by the Recipient or its subcontractors will violate any such restriction. The Recipient shall defend and indemnify the Agency for any infringement or alleged infringement of such patent, trademark, copyright, license, or other restrictions.
- R. Prior Approval.** This Agreement shall not be binding upon either party, no services shall be performed, and the Wyoming State Auditor shall not draw warrants for reimbursement until this Agreement has been fully executed, approved as to form by the Office of the Attorney General, filed with and approved by A&I Procurement, and approved by the Governor of the State of Wyoming, or his designee, if required by Wyo. Stat. § 9-2-3204(b)(iv).
- S. Insurance Requirements.** Recipient is protected by the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101, et seq., and certifies that it is a member of the Wyoming Association of Risk Management (WARM) pool or the Local Government Liability Pool (LGLP), Wyo. Stat. § 1-42-201, et seq., and shall provide a letter verifying its participation in the WARM or LGLP to the Agency.
- T. Severability.** Should any portion of this Agreement be judicially determined to be illegal or unenforceable, the remainder of the Agreement shall continue in full force and effect, and the parties may renegotiate the terms affected by the severance.
- U. Sovereign Immunity and Limitations.** Pursuant to Wyo. Stat. § 1-39-104(a), the State of Wyoming and Agency expressly reserve sovereign immunity by entering into this Agreement and the Recipient expressly reserves governmental immunity. Each of them specifically retains all immunities and defenses available to them as sovereigns or governmental entities pursuant to Wyo. Stat. § 1-39-101, et seq., and all other applicable law. The parties acknowledge that the State of Wyoming has sovereign immunity and only the Wyoming Legislature has the power to waive sovereign immunity. Designations of venue, choice of law, enforcement actions, and similar provisions shall not be construed as a waiver of sovereign immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to immunity shall be construed in favor of immunity.
- V. Taxes.** The Recipient shall pay all taxes and other such amounts required by federal, state, and local law, including, but not limited to, federal and social security taxes, workers' compensation, unemployment insurance, and sales taxes.

- W. Termination of Agreement.** This Agreement may be terminated, without cause, by the Agency upon thirty (30) days written notice. This Agreement may be terminated by the Agency immediately for cause if the Recipient fails to perform in accordance with the terms of this Agreement.
- X. Third-Party Beneficiary Rights.** The parties do not intend to create in any other individual or entity the status of third-party beneficiary, and this Agreement shall not be construed so as to create such status. The rights, duties, and obligations contained in this Agreement shall operate only between the parties to this Agreement and shall inure solely to the benefit of the parties to this Agreement. The provisions of this Agreement are intended only to assist the parties in determining and performing their obligations under this Agreement.
- Y. Time is of the Essence.** Time is of the essence in all provisions of this Agreement.
- Z. Titles Not Controlling.** Titles of sections and subsections are for reference only and shall not be used to construe the language in this Agreement.
- AA. Waiver.** The waiver of any breach of any term or condition in this Agreement shall not be deemed a waiver of any prior or subsequent breach. Failure to object to a breach shall not constitute a waiver.
- BB. Counterparts.** This Agreement may be executed in counterparts. Each counterpart, when executed and delivered, shall be deemed an original and all counterparts together shall constitute one and the same Agreement. Delivery by the Recipient of an originally signed counterpart of this Agreement by facsimile or PDF shall be followed up immediately by delivery of the originally signed counterpart to the Agency.

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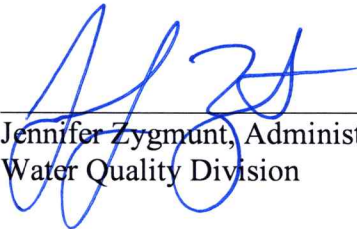
9. **Signatures.** The parties to this Agreement, either personally or through their duly authorized representatives, have executed this Agreement on the dates set out below, and certify that they have read, understood, and agreed to the terms and conditions of this Agreement.

The Effective Date of this Agreement is the date of the signature last affixed to this page.

WYOMING DEPARTMENT OF ENVIRONMENTAL QUALITY:

Todd Parfitt, Director
Department of Environmental Quality

Date



Jennifer Zygmunt, Administrator
Water Quality Division

2/3/25

Date

CITY OF CHEYENNE:

Patrick Collins, Mayor

Date

ATTORNEY GENERAL'S OFFICE APPROVAL AS TO FORM:



Jodi A. Darrough, Senior Assistant Attorney General

1-29-25

Date

Attachment A

The Kiwanis Park Trail and Constructed Wetlands Project

Scope of Work

List of Acronyms and Abbreviations

BMP	Best Management Practice
GFWC	General Federation of Women's Clubs
HUC	Hydrologic Unit Code
LCCD	Laramie County Conservation District
MBE	Minority Business Enterprise
NPS	Nonpoint Source
QAPP	Quality Assurance Program Plan
SAP	Sampling and Analysis Plan
SGCA	Sage Grouse Core Area
SOP	Standard Operating Procedures
TMDL	Total Maximum Daily Load
UPRR	Union Pacific Railroad
WBE	Women Business Enterprise
WDA	Wyoming Department of Agriculture
WDEQ	Wyoming Department of Environmental Quality
WGFD	Wyoming Game and Fish Department
WQD	Water Quality Division
WYPDES	Wyoming Pollutant Discharge Elimination System

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PROJECT SUMMARY		
Project Title	The Kiwanis Park Trail and Constructed Wetlands Project	
Project Synopsis	The City of Cheyenne will install treatment wetlands, gravel trails and educational signage in its City owned Kiwanis Community Park site. The intent is to provide a water quality wetlands feature along a portion of Dry Creek. Dry Creek is a tributary of the Crow Creek Watershed. The project will add to existing wetlands and open water on the site, provide gravel trails for the public to view nature and wildlife and educate the public on the many functions of wetlands and their effect on both water quality and wildlife habitat.	
Sponsor Contact Information	Organization Name	City of Cheyenne
	Primary Contact Name	Jean A Shrednik, PLA
	Primary Contact Title	Parks and Greenway Planner
	Street Address	2101 O'Neil Avenue, Room 202
	City, State, Zip Code	Cheyenne, WY, 82001
	Phone	307-638-4379
	Email	jshrednik@cheyennecity.org
Latitude(s), Longitude(s)	41.13906, -104.73601	
County(ies)	Laramie	
Watershed Name(s)	Crow Creek	
HUC 8(s)	10190009	
Waterbodies Impacted (Indicate impairment status)	Dry Creek (unimpaired; tributary to Crow Creek); Crow Creek (impaired; <i>E. coli</i> , Fecal Coliform, sediment)	
Watershed-Based Plans	E. coli TMDL for Crow Creek, Laramie County, Wyoming	
Project Type	Watershed Project	
Functional Categories	BMP Implementation; Outreach/Education; Water Quality Monitoring; Natural Area/Habitat	
Pollutant Sources Addressed	Urban Runoff; Recreation	
Pollutants Addressed	Bacteria/Pathogens; Sediment	
Estimated Timeframe	Project Start	December 1, 2024
	Project Finish	February 28, 2029
Funding Summary	DEQ Funds	\$112,904.00
	Nonfederal Match Funds	\$286,376.00
	Total Project Cost	\$399,280.00
	Other Federal Funds	\$0

1. PROJECT PURPOSE AND BACKGROUND

Project Purpose/Need:

In 2020, the city purchased a 105-acre site for public park, open space, and to facilitate improvements to regional drainage and flood control. A Park Master Plan for the site was created and approved by City Council in 2022. The Master Plan preserves existing FEMA floodway, floodplain and wetlands located in the southern portion of the site and approximately 2/3 of the site will remain in this natural state. This project will create additional wetlands to mitigate upstream development impacts and for impacts created by future efforts to build traditional park facilities such as managed turf fields, parking lots and buildings which are known sources of non-point source pollution in the northern 1/3 of the site.

Watershed Characteristics:

The project is in the Dry Creek Drainage Basin which is a direct tributary of the Crow Creek (South Platte River) watershed. The Kiwanis Park property is in the lower portion of the 16 sq. mile Dry Creek drainage basin with approx. 12 square miles of drainage area upstream of this site. The historic creek bed traverses the western portion of our site with a confluence with the dredged channel in the southwestern portion of our site. A constructed wetland feature on the main and historic creek pathways was installed in 2010 to help address water quality for the receiving Crow Creek.

Water Quality Problem:

Crow Creek has been under a variety of EPA 303d listings for impaired waters in the past decades. Six segments of Crow Creek through the City of Cheyenne have been listed on Wyoming's 303(d) list as impaired for recreation, fisheries, and/or aquatic life designated uses. Per the developed TMDL's for Crow Creek, the primary source of pollutants causing the impairments is urban runoff from the City of Cheyenne. The Dry Creek Basin is a major tributary to Crow Creek within the impaired segment. Directly downstream of the property is a high earthen filled embankment of the Union Pacific Railroad (UPRR) which has a single concrete culvert crossing located southeast of the park property. The outlet culvert through the UPRR embankment is (6' x 8' box arch culvert) with limited flow capacity and moderate clogging potential. This situation has made large portions of the property subject to flooding. This lower portion of the Dry Creek Basin is being rapidly developed from the historic rural residential land use to higher density urban residential to accommodate the community's growing population. Our wetlands project will address water quality for the lower portion of the basin.

2. PROJECT PLANNING

The Laramie County Conservation District (LCCD) developed the Crow Creek Watershed Plan in 2003 and has been conducting water quality monitoring and sampling for fecal coliform and E. coli in the impacted segments of Crow Creek since that time. For the past several years, the LCCD has assisted the city with water quality data in support of Cheyenne's MS4 compliance efforts. The city recently submitted an

updated Stormwater Management Plan for the Cheyenne Urbanized Area including the Dry Creek Basin and the impaired reach of Crow Creek within the corporate limits of Cheyenne. Six segments of Crow Creek through the City of Cheyenne are listed on Wyoming's 303(d) list as impaired for recreation, fisheries, and/or aquatic life designated uses. Per the recently developed TMDLs for Crow Creek, the primary source of pollutants causing the impairment is urban runoff from the City of Cheyenne. Urban nonpoint source pollution can come from several sites and activities within the urbanized center. Sediment can be contributed from construction sites, unpaved alleys, and streets. Excess sediment levels in streams negatively impacts the aquatic community. Exposure to elevated levels of bacteria in waters used for recreation can be a human health concern. The City's Stormwater Management Plan includes BMPs and measurable goals to address six MCMs. The city has also just completed an update to the Dry Creek Basin Drainage Master Plan including structural and nonstructural project recommendations to improve and restore the riverine function of the creek, increase channel maintenance, and provide improved storm drainage management with respect to both flood control and water quality.

3. PROJECT SCOPE OF WORK, OUTCOMES, AND DELIVERABLES

The primary goal of this project is to reduce sediment loading to Crow Creek to achieve load reductions identified in the TMDLs as being needed to allow Crow Creek to meet water quality standards. The secondary goal of this project is to reduce *E. coli* loading to Crow Creek, also in accordance with the TMDLs. Wetland features will physically allow settleable solids to be captured and allow for the passive biological treatment of sediment and *E. coli*, in addition to other pollutants such as hydrocarbons and nutrients. The wetlands feature will be designed such that retention time is maximized for the first flush of stormwater runoff, 0.82 inches of rainfall corresponding to a 2-year storm event for the Cheyenne area (City of Cheyenne Drainage Master Plan Update, 2023). The wetlands feature will be designed to maximize treatment of *E. coli* levels through filtration and UV light exposure. Designs for the wetland feature will also incorporate wildlife and waterfowl habitat considerations. The city anticipates the wetlands will reduce sediment contribution from the Lower Dry Creek Basin by 30-50% (290-495 tons/year) which will affect a 10% load reduction within Crow Creek. This project will complement an existing constructed wetland in the Lower Capitol Basin, and one planned for the Clear Creek Basin with the ultimate goal for Crow Creek to meet state water quality standards and support all designated uses. Combined, these three wetlands address the most significant contribution of stormwater and excess bed material load to Crow Creek. This project will add to existing wetlands in the corridor, increasing woody debris for aquatic insects and habitat for birds and other wildlife. We are proposing public outreach and signage in this park setting to educate the public on the many functions of wetlands and existing wildlife. This project will help reduce sediment and *E. coli* loading to the impaired segment of Crow Creek, increase public enjoyment of the area, and provide additional water quality for future recreational amenities in the park, as well as, address water quality issues from the urbanization of this portion of the Lower Dry Creek Basin.

4. TASK TABLE

TASK	TITLE	DESCRIPTION	DELIVERABLES
1	Administration	Administer project efficiently and effectively, submit reimbursement requests, keep all records, file all reports, and obtain any necessary permits. Participate in financial audits as needed.	Reimbursement requests, complete progress reports with each reimbursement request, annual reports, annual MBE/WBE reports, final project report, other documentation as requested.
2	Construction	Contractor and Subcontractors	Completion of full project construction
3	Monitoring	Sediment surveys, photopoints for tracking revegetation, water quality sampling.	- Updated Sampling and Analysis Plan providing a study design for determining sediment and <i>E. coli</i> concentration/load reductions. - Report documenting the results of water quality monitoring
4	Information/Education	Public ribbon cutting and open house to include tour of facility and presentation regarding the benefits wetlands.	Press release, photos of open house and presentation materials.
5	Maintenance Plan	Plan and schedule for routine, long-term maintenance	Maintenance Plan

5. PROJECT EVALUATION

The city will rely on repeat annual sediment surveys of the accumulated sediment in the facility. The surveys will readily determine how much sediment has been removed from the impaired Crow Creek watershed by the constructed wetland. Comparing this to the required average sediment reduction (over time) will provide an estimate of how well the constructed wetland is performing. The city is also committed to evaluating the effectiveness of the project on *E. coli* starting the third year after the project has been completed to allow for revegetation of the floodplain which should influence our water quality goals. Photo points will be taken for tracking revegetation and floodplain connectivity improvements in coordination with our GIS staff and their periodic mapping flights. We may deploy piezometers to monitor water table elevations as warranted. The LCCD has been assisting the City with a bacteria sampling program for *E. coli* bacteria 4 months of the year within the impaired segment of Crow Creek. LCCD's current SAP/QAPP was approved by the WQD in 2023 and will be updated to add a monitoring objective to assess the effectiveness of the wetland at reducing *E. coli* and sediment concentrations/loads and a study design (e.g., before/after, inlet/outlet monitoring, photo-points) to meet the new monitoring objective. The city will be transitioning to a new sampling contractor in 2024 and data they collect as a part of this project will be submitted to the WQD in the final project report (including an electronic copy of the data). Field Logbooks/Data Sheets documenting calibration information, field conditions, observations, sampling location information and any corrective actions

taken will be kept for this project monitoring program. Equipment will be calibrated according to equipment manuals and WDEQ Standard Operating Procedures. Forms provided by the WDA Analytical Services Laboratory will serve as chain of custody forms. Resumes and supporting documentation verifying the expertise and qualifications of the sampling personnel will be provided to the WQD prior to implementation of any sampling program. The city will commit to an annual WDEQ QA/QC field audit and an independent third-party QA/QC review of the data collected in support of this project. Pollutant Load Reduction Estimates are for a 10% load reduction within Crow Creek due to this constructed wetland. The city is proposing to engage the LCCD and the Audubon Society for an open house/workshop on site along with placement of educational material and signage. The city will evaluate the success of its information/educational activities by survey results and attendance of publicized workshop.

PERMITS

PERMIT NAME / TYPE	STATUS
Laramie County Floodplain Development Permit	Approved
Laramie County Grading Permit	pending selection of Contractor and Contractor submittal
State of Wyoming WYPDES Permit	pending selection of Contractor and Contractor submittal
State of Wyoming Engineers Office, Reservoir Permit	Pending
US Army Corp of Engineers	Pending

[Sponsor] is committed to obtaining any additional required environmental permits it becomes aware of during the course of this project.

6. PARTNERS

PARTNER	CONTRIBUTION(S)
Kiwanis Club of Cheyenne	\$80,000.00 in financial support
Cheyenne Audubon Society	\$2,500.00 in financial support
Cheyenne Greenway Foundation	\$3,000.00 in financial support
GFWC Women's Civic League of Cheyenne	\$800.00 in financial support
2017 City of Cheyenne 6th Penny Tax, Community Park	Balance in financial support as needed (available funding, \$480,000.00)

7. **ANTICIPATED NON-FEDERAL MATCH FUNDING SOURCES**

SOURCE	AMOUNT	STATUS
Kiwanis Club of Cheyenne	\$80,000.00	Secured
City of Cheyenne 6th Penny	\$184,936.00	Secured
Cheyenne Audubon Society	\$2,500.00	Secured
Cheyenne Greenway Foundation	\$3,000.00	Secured
GFWC Women's Civic League of Cheyenne	\$800.00	Secured
TOTAL MATCH	\$271,236.00	

8. **OUTREACH AND EDUCATION**

At project completion, the City will advertise a ribbon cutting for the project, provide tours of the new wetlands and provide a presentation regarding the benefits of wetlands with presenters including the Audubon Society and native plant experts. The Kiwanis Park Trail and Constructed Wetlands Project will include 6 educational signs placed throughout the project area to provide education for users to include;

1. Dry Creek's history and future.
2. Information on wetlands and how they benefit water quality.
3. The benefits of riparian areas for wildlife.
4. Native pollinators and beneficial insects.
5. Birds found in riparian areas.
6. The Kiwanis Park Master Plan

The project will also include installation of two bird blinds for groups such as the Cheyenne Audubon Society to watch and photograph birds that will use the new wetlands.

GREATER SAGE GROUSE CORE AREA (SGCA) PROTECTION

No part of this project falls within a SGCA; no additional requirements apply to this project.

9. **OTHER INFORMATION**

1. The project is at the 90% design stage and nearly shovel ready which will result in timely construction and completion.
2. The project includes a public recreation component via a gravel trail system that will allow visitors to enjoy the improvement and become educated about wetland and riparian systems and their benefits to both water quality and wildlife.
3. The project will eventually tie into an existing, 49-mile Greenway trail system, (10-foot width, concrete) that provides a transportation alternative and recreational amenity throughout the city. The project will provide even more access for the public. The design for a portion of this connection is currently underway.
4. Construction of wetlands will improve wildlife habitat on the site and provide much-needed water quality for this portion of the Lower Dry Creek Basin.
5. Volunteers will plant trees in the future through the efforts of Rooted in Cheyenne, a tree planting

program sponsored by the city.

6. The Audubon Society will use the proposed bird blind facilities and report on bird counts in the area.

7. Possibility of conducting fish surveys periodically to detect changes.

10. MILESTONE TABLE

MILESTONE (Calendar Year Quarter)	2024	2025				2026				2027				2028				2029
	4	1	2	3	4	1	2	3	4	1	2	3	4	1	2	3	4	1
Task 1. Administration	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X
Task 2. Construction		X	X	X	X	X	X											
Task 3. Monitoring																		
Update SAP	X	X																
Pre-Const. Monitoring (Tentative)		X	X															
Post-Const. Monitoring										X	X	X	X	X	X	X	X	X
Task 4. Information/Education							X	X	X									
Task 5. Maintenance Plan									X									

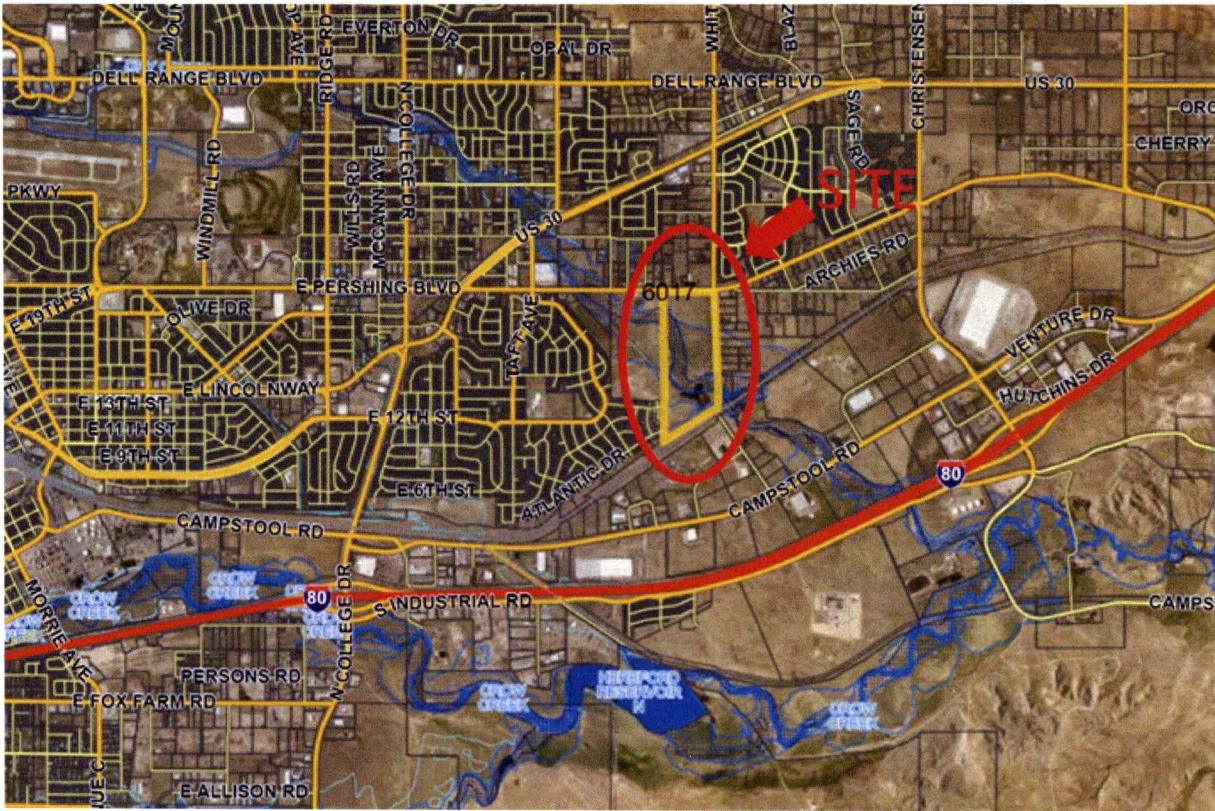
11. CONFIRMATION STATEMENTS

This project does not duplicate or replicate activities already being conducted by other agencies/organizations. If similar activities are being undertaken in the watershed, this project complements those efforts but does not duplicate them.

Awarded funds will not be used to assume other agencies' responsibilities for activities being carried out in the project watershed.

The project sponsor is aware of the following Wyoming State Statutes regarding collection of resource data and public records: Wyoming Statute W.S. 6-3-414 (Trespassing to Collect Data) and Wyoming Statute W.S. 16-4-201 through 16-4-205 (Public Records).

12. PROJECT MAP(S)



Project Location

Property Owners: City of Cheyenne, 2101 O'Neil Ave, Cheyenne WY 82001
 Street Address: 6017 E. Pershing Blvd., Cheyenne WY
 105.48 Acres, Zoning P-Public

Lat / Lon N: 41.14182°, W: 104.73503°
 NAD83 UTM Zone 13 X: 522237, Y: 4554535
 NAD83 Wyoming East (ftUS) N: 234121, E: 775050

Attachment B

The Kiwanis Park Trail and Constructed Wetlands Project

Project Budget

LIST OF ACRONYMS

BMP	Best Management Practice
MBE	Minority Business Enterprise
NPS	Nonpoint Source
OFF	Other Federal Funds
WBE	Woman Business Enterprise
WDEQ	Wyoming Department of Environmental Quality

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TASK 1	ADMINISTRATION						
TASK PRODUCTS	Reimbursement requests, complete progress reports with each reimbursement request, annual reports, annual MBE/WBE reports, final project report, other documentation as requested.						
PARTIES RESPONSIBLE FOR COMPLETING TASK	Jean Shrednik						
INCLUSIVE DATES	Life of project						
Cost Category	319 Federal Funds	Non-federal Cash Match	Non-federal In-Kind Match	Total Match	Other Federal Funds	Total NPS Cost (319 Funds + Match)	Total Cost (including Other Federal Funds)
1) PERSONNEL	\$0.00	\$4,640.00	\$0.00	\$4,640.00	\$0.00	\$4,640.00	\$4,640.00
2) SUPPLIES AND EQUIPMENT	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00
3) CONTRACTUAL	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00
4) OTHER	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00
TOTAL DIRECT	\$0.00	\$4,640.00	\$0.00	\$4,640.00	\$0.00	\$4,640.00	\$4,640.00
INDIRECT				\$0.00		\$0.00	\$0.00
TASK TOTAL	\$0.00	\$4,640.00	\$0.00	\$4,640.00	\$0.00	\$4,640.00	\$4,640.00

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TASK 2	CONSTRUCTION						
TASK PRODUCTS	Full build out of project						
PARTIES RESPONSIBLE FOR COMPLETING TASK	Selected Contractor						
INCLUSIVE DATES	February to July 2026						
Cost Category	319 Federal Funds	Non-federal Cash Match	Non-federal In-Kind Match	Total Match	Other Federal Funds	Total NPS Cost (319 Funds + Match)	Total Cost (including Other Federal Funds)
1) PERSONNEL	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00
2) SUPPLIES AND EQUIPMENT	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00
3) CONTRACTUAL	\$112,904.00	\$271,236.00	\$0.00	\$271,236.00	\$0.00	\$384,140.00	\$384,140.00
4) OTHER	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00
TOTAL DIRECT	\$112,904.00	\$271,236.00	\$0.00	\$271,236.00	\$0.00	\$384,140.00	\$384,140.00
INDIRECT				\$0.00		\$0.00	\$0.00
TASK TOTAL	\$112,904.00	\$271,236.00	\$0.00	\$271,236.00	\$0.00	\$384,140.00	\$384,140.00

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TASK 3	PROJECT EVALUATION						
TASK PRODUCTS	Annual Sediment Survey, Water Quality Testing after third year, Photopoints for tracking revegetation, for three years after construction completion.						
PARTIES RESPONSIBLE FOR COMPLETING TASK	Jean Shrednik						
INCLUSIVE DATES	Project completion through third year.						
Cost Category	319 Federal Funds	Non-federal Cash Match	Non-federal In-Kind Match	Total Match	Other Federal Funds	Total NPS Cost (319 Funds + Match)	Total Cost (including Other Federal Funds)
1) PERSONNEL	\$0.00	\$10,000.00	\$0.00	\$10,000.00	\$0.00	\$10,000.00	\$10,000.00
2) SUPPLIES AND EQUIPMENT	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00
3) CONTRACTUAL	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00
4) OTHER	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00
TOTAL DIRECT	\$0.00	\$10,000.00	\$0.00	\$10,000.00	\$0.00	\$10,000.00	\$10,000.00
INDIRECT				\$0.00		\$0.00	\$0.00
TASK TOTAL	\$0.00	\$10,000.00	\$0.00	\$10,000.00	\$0.00	\$10,000.00	\$10,000.00

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TASK 4	OUTREACH AND EDUCATION						
TASK PRODUCTS	Public ribbon cutting and open house to include a tour of the facility and presentation regarding the benefits of wetlands.						
PARTIES RESPONSIBLE FOR COMPLETING TASK	Jean Shrednik						
INCLUSIVE DATES	Fall of 2026						
Cost Category	319 Federal Funds	Non-federal Cash Match	Non-federal In-Kind Match	Total Match	Other Federal Funds	Total NPS Cost (319 Funds + Match)	Total Cost (including Other Federal Funds)
1) PERSONNEL	\$0.00	\$500.00	\$0.00	\$500.00	\$0.00	\$500.00	\$500.00
2) SUPPLIES AND EQUIPMENT	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00
3) CONTRACTUAL	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00
4) OTHER	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00
TOTAL DIRECT	\$0.00	\$500.00	\$0.00	\$500.00	\$0.00	\$500.00	\$500.00
INDIRECT				\$0.00		\$0.00	\$0.00
TASK TOTAL	\$0.00	\$500.00	\$0.00	\$500.00	\$0.00	\$500.00	\$500.00

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PROJECT BUDGET SUMMARY							
Cost Category	319 Federal Funds	Non-federal Cash Match	Non-federal In-Kind Match	Total Match	Other Federal Funds	Total NPS Cost (319 Funds + Match)	Total Cost (including Other Federal Funds)
1) PERSONNEL	\$0.00	\$15,140.00	\$0.00	\$15,140.00	\$0.00	\$15,140.00	\$15,140.00
2) SUPPLIES AND EQUIPMENT	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00
3) CONTRACTUAL	\$112,904.00	\$271,236.00	\$0.00	\$271,236.00	\$0.00	\$384,140.00	\$384,140.00
4) OTHER	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00
TOTAL DIRECT	\$112,904.00	\$286,376.00	\$0.00	\$286,376.00	\$0.00	\$399,280.00	\$399,280.00
INDIRECT	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00
TASK TOTAL	\$112,904.00	\$286,376.00	\$0.00	\$286,376.00	\$0.00	\$399,280.00	\$399,280.00

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Attachment C

The Kiwanis Park Trail and Constructed Wetlands Project

Reimbursement Tables

LIST OF ACRONYMS

BMP	Best Management Practice
MBE	Minority Business Enterprise
NPS	Nonpoint Source
OFF	Other Federal Funds
WBE	Woman Business Enterprise
WDEQ	Wyoming Department of Environmental Quality

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TASK 1	ADMINISTRATION						
DESCRIPTION OF ACCOMPLISHMENTS							
PARTIES RESPONSIBLE FOR COMPLETING TASK							
INCLUSIVE DATES							
COST CATEGORY	319 Federal Funds	Nonfederal Cash Match	Nonfederal In-Kind Match	Total Match	Other Federal Funds (OFF)	Total NPS Cost (319 + Match)	Total Cost (Total NPS + OFF)
1) PERSONNEL							
2) SUPPLIES AND EQUIPMENT							
3) CONTRACTUAL							
4) OTHER							
TOTAL DIRECT							
INDIRECT							
TASK TOTAL							

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TASK 2	CONSTRUCTION						
DESCRIPTION OF ACCOMPLISHMENTS							
PARTIES RESPONSIBLE FOR COMPLETING TASK							
INCLUSIVE DATES							
COST CATEGORY	319 Federal Funds	Nonfederal Cash Match	Nonfederal In-Kind Match	Total Match	Other Federal Funds (OFF)	Total NPS Cost (319 + Match)	Total Cost (Total NPS + OFF)
1) PERSONNEL							
2) SUPPLIES AND EQUIPMENT							
3) CONTRACTUAL							
4) OTHER							
TOTAL DIRECT							
INDIRECT							
TASK TOTAL							

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TASK 3	PROJECT EVALUATION						
DESCRIPTION OF ACCOMPLISHMENTS							
PARTIES RESPONSIBLE FOR COMPLETING TASK							
INCLUSIVE DATES							
COST CATEGORY	319 Federal Funds	Nonfederal Cash Match	Nonfederal In-Kind Match	Total Match	Other Federal Funds (OFF)	Total NPS Cost (319 + Match)	Total Cost (Total NPS + OFF)
1) PERSONNEL							
2) SUPPLIES AND EQUIPMENT							
3) CONTRACTUAL							
4) OTHER							
TOTAL DIRECT							
INDIRECT							
TASK TOTAL							

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TASK 4	OUTREACH AND EDUCATION						
DESCRIPTION OF ACCOMPLISHMENTS							
PARTIES RESPONSIBLE FOR COMPLETING TASK							
INCLUSIVE DATES							
COST CATEGORY	319 Federal Funds	Nonfederal Cash Match	Nonfederal In-Kind Match	Total Match	Other Federal Funds (OFF)	Total NPS Cost (319 + Match)	Total Cost (Total NPS + OFF)
1) PERSONNEL							
2) SUPPLIES AND EQUIPMENT							
3) CONTRACTUAL							
4) OTHER							
TOTAL DIRECT							
INDIRECT							
TASK TOTAL							

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REIMBURSEMENT SUMMARY							
COST CATEGORY	319 Federal Funds	Nonfederal Cash Match	Nonfederal In-Kind Match	Total Match	Other Federal Funds (OFF)	Total NPS Cost (319 + Match)	Total Cost (Total NPS + OFF)
1) PERSONNEL							
2) SUPPLIES AND EQUIPMENT							
3) CONTRACTUAL							
4) OTHER							
TOTAL DIRECT							
INDIRECT							
TASK TOTAL							

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**ATTACHMENT D
SUBAWARD DATA FORM**

Pursuant to 31 USC 7502(f)(2)(B) (Single Audit Act Amendments of 1996 (Pub. L. No. 104-156)); 2 CFR sections 200.505, 200.521, and 200.331; program legislation; and federal awarding agency regulations and terms and conditions of the award, DEQ is notifying you that the accompanying agreement is a sub-award of federal funds. We are required to inform you of the following data elements:

- Federal Award ALN (CFDA): 66.460
- Sub-recipient name: City of Cheyenne
- Sub-recipient's unique entity identifier (UEI): **KJRKMZUFMY2**
- Federal Award Identification Number: C900863024
- Federal Award Date: 08/29/2024
- Sub-award Period of Performance Start and End Date: Effective Date-09/08/2029
- Total Amount of the Federal Award committed to the sub-recipient by the pass-through entity: \$112,904.00
- Federal award project description, as required to be responsive to the Federal Funding Accountability and Transparency Act: This agreement provides support to the State of Wyoming to implement its nonpoint source management program, focusing on watersheds with water quality impairments caused by polluted runoff from nonpoint sources. Nonpoint source implementation projects include a variety of structural and non-structural best management practices (BMPs), watershed planning, monitoring, technology demonstrations, and a variety of education/outreach programs.
- Name of Federal awarding agency: US Environmental Protection Agency
- Name of pass-through entity and contact information for awarding official of the Pass-through entity:

Wyoming Department of Environmental Quality (WDEQ)
200 West 17th Street, Suite 400
Cheyenne, WY 82002

WDEQ Awarding Official:
Kimber Wichman
Management Services Administrator
kimber.wichmann@wyo.gov
307-777-7198

ALN Number and Name: 66.460 – Nonpoint Source Implementation Grant

- Identification of whether the award is R&D: This is not an R&D Award
- Indirect cost rate for the Federal award: \$0.00

Federal Funds	Recipient Match Funds	Total Funds
\$112,904.00	\$286,376.00	\$399,280.00

Please complete the data element "Sub-recipient's unique entity identifier" highlighted above, the Federal Funding Accountability form below, and return. The entity identifier should be a UEI from SAM.gov.

State of Wyoming – Department of Environmental Quality

Attachment D to the Cooperative Agreement between
the Wyoming Department of Environmental Quality and the City of Cheyenne
The Kiwanis Park Trail and Constructed Wetlands Project

Federal Funding Accountability and Transparency Act Recipient Disclosures

Entity Name: City of Cheyenne
UEI Number: KURKMKZUFM42
Entity Address: 2101 O'Neil Ave. Cheyenne WY 82001
Federal Award Amount: \$112,904.00
Award Title: The Kiwanis Park Trail and Constructed Wetlands Project
Non-point Source Implementation Grant, Section 319

Location of Performance Under the Award: Kiwanis Community Park
(Postal Address or Geographic Description) 6017 E. Pershing Blvd, Cheyenne WY
LAT 41.13906, LONG - 104.73601
City: Cheyenne
County: Laramie
State: Wyoming

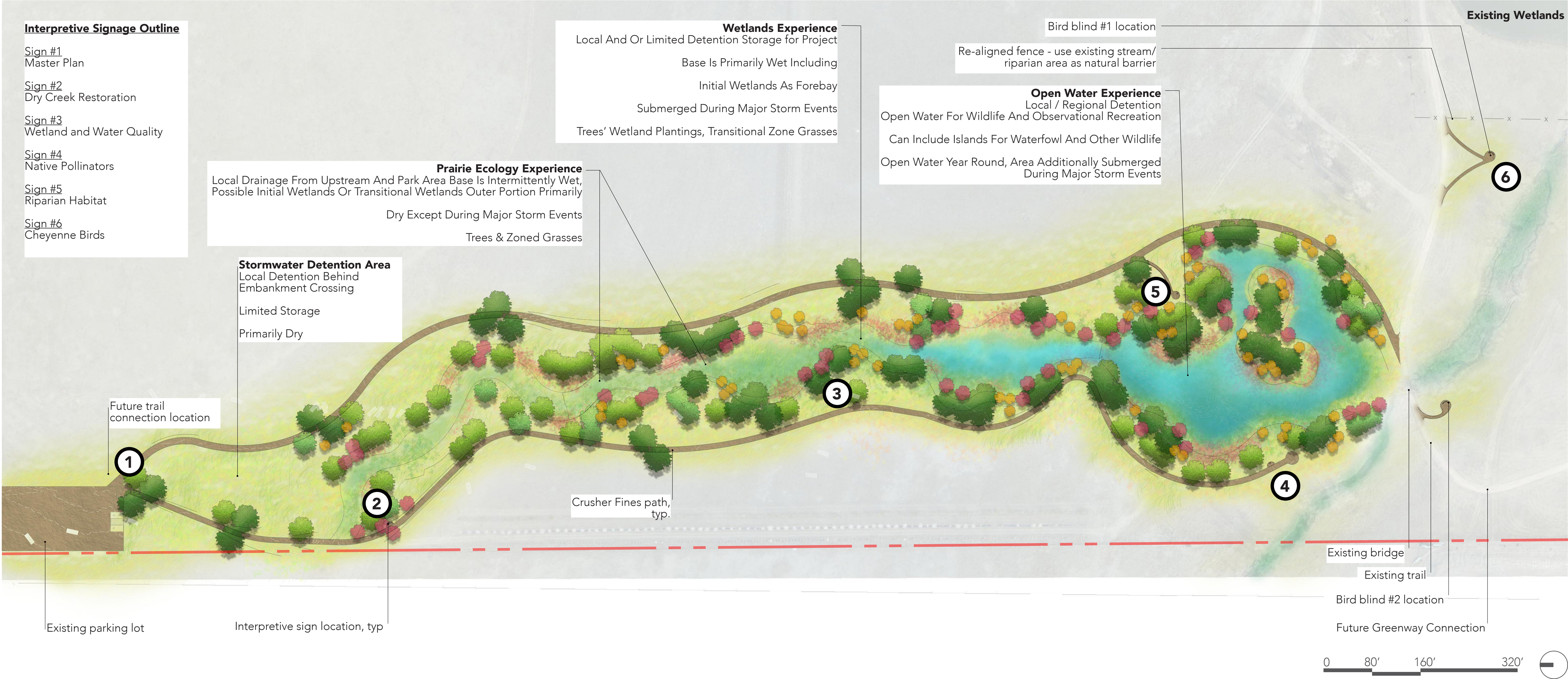
1. Did the entity receive 80% or more of its annual gross revenues in federal awards?
☐ Yes ☒ No (If yes, go to item 2; if no, skip to item 5)
2. Did the entity receive \$25 million or more in annual gross revenues from federal awards?
☐ Yes ☒ No (If yes, go to item 3; if no, skip to item 5)
3. Does the public have access to information about compensation for the five highest paid executives through periodic reports filed under §13(a) or §15(d) of the Securities Exchange Act of 1934 or §6104 of the Internal Revenue Code of 1986?
☒ Yes ☐ No (If yes, go to item 4; if no, skip to item 5)

4. Complete the following:

Name and Title of Five Highest Paid Executives	Total Annual Compensation
<u>Mark Francisco, Police Chief</u>	<u>\$139,857</u>
<u>John Brodie, City Attorney</u>	<u>\$140,000</u>
<u>John Kopper, Fire Chief</u>	<u>\$130,436</u>
<u>Tom Cobb, City Engineer</u>	<u>\$126,282</u>
<u>Vicki Nemecek, Public Works Dir.</u>	<u>\$130,329</u>

5. I certify that the information provided above is, to the best of my knowledge, true and correct:

Signature and Date



2023.02.23